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Justin Rangel

UNITED STATES DISTRICT COURT

SOUTHERN DISTRICT OF CALIFORNIA

JUSTIN RANGEL; an individual;

Plaintiff,

v.

ACCURATE BACKGROUND, LLC; and DOES 1 to 50, inclusive;

Defendants.

CASE NO. **'25CV1983 AJB MMP**

COMPLAINT FOR VIOLATIONS OF:

1. ICRAA;
2. FCRA;
3. CAL. BUS. & PROF. CODE § 17200;

JURY TRIAL DEMANDED

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Plaintiff JUSTIN RANGEL ("Plaintiff"), an individual files this Complaint and Demand for Jury Trial against Defendants ACCURATE BACKGROUND, LLC ("Accurate"); and DOES 1 to 50, inclusive (collectively "Defendants"), and based on information and belief, hereby alleges and complains as follows:

INTRODUCTION

1. This action arises from the inaccurate and incomplete investigative consumer report (the "Report") prepared by Defendant Accurate in connection with Plaintiff's job application.

2. Despite Plaintiff's submission of documentation, the Report continued to misstate his background history, failed to reflect accurate information, and ultimately caused the revocation of an employment opportunity.

3. Upon information and belief, Accurate failed to follow reasonable procedures to assure maximum possible accuracy of the information it reported, and Defendants ignored their obligations under federal and California consumer protection statutes by relying on this inaccurate report, and in their actions once Plaintiff disputed the Report.

4. Specifically, Defendants violated the Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681 *et seq*., and the California Investigative Consumer Reporting Agencies Act ("ICRAA"), Cal. Civ. Code § 1786 *et seq*., by failing to maintain procedures to assure maximum possible accuracy, and by failing to conduct a reasonable reinvestigation upon receiving notice of dispute.

5. Defendants also violated the FCRA and ICRAA by procuring and using an inaccurate investigative consumer report in its employment decision-making process, and by failing to provide Plaintiff with a meaningful opportunity to respond before taking adverse action.

6. As a result of Defendants' conduct, Plaintiff was denied employment, suffered financial loss, and experienced emotional distress and reputational harm.

7. Plaintiff now brings this action for violations of (1) the ICRAA, (2) the

FCRA, (3) California's Unfair Competition Law, Bus. & Prof. Code § 17200 *et seq*., and seeks actual, statutory, and punitive damages, restitution, and all other relief authorized by law.

JURISDICTION AND VENUE

8. Jurisdiction of this Court arises pursuant to 28 U.S.C. § 1331 due to federal causes of action under 15 U.S.C. § 1681, and under 28 U.S.C. § 1332 due to diversity of citizenship.

9. Jurisdiction is proper in this Court because the amount in controversy exceeds the jurisdictional minimum of this Court, and this case involves the violation of Federal statutes.

10. Because all Defendants conduct business within the State of California, personal jurisdiction is established.

11. Venue is proper pursuant to 28 U.S.C. § 1391 for the following reasons: (i) Plaintiff resides in this judicial district; (ii) the conduct complained of herein occurred within this judicial district; and (iii) Defendant conducted business within this judicial district at all times relevant.

PARTIES

12. Plaintiff JUSTIN RANGEL is a natural person and resident of San Diego County, California.

13. Plaintiff is a "consumer" as that term is defined by the FCRA and the ICRAA.

14. Defendant ACCURATE BACKGROUND, LLC is an investigative consumer reporting agency as defined by the FCRA and ICRAA with its principal address of business in 200 SPECTRUM CENTER DRIVE, SUITE 1100 IRVINE, CA 92618.

15. The true names and capacities, whether individual, corporate (including officers and directors thereof), associate or otherwise of Defendants sued herein as Does 1 through 50, inclusive, are unknown to Plaintiff, who therefore sues these

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Defendants by such fictitious names, pursuant to the CCP § 474. Plaintiff is informed and believes, and thereon alleges that each Named Defendant and each Defendant designated as a Doe is involved in or is in some manner responsible as an officer, director, managing agent, principal, beneficiary, agent, co-conspirator, joint venturer, alter ego, third-party beneficiary, or otherwise, for the agreements, transactions, events and/or acts hereinafter described, and thereby proximately caused injuries and damages to Plaintiff. Plaintiff requests that when the true names and capacities of these DOE Defendants are ascertained, they may be inserted in all subsequent proceedings, and that this action may proceed against them under their true names.

FACTUAL ALLEGATIONS

16. Plaintiff is an experienced computed tomography ("CT") technologist residing in San Diego, California.

17. In or around early May 2025, Plaintiff applied for a CT technologist position at Sharp Hospital ("Sharp") in San Diego, California. As part of the pre-employment process, Plaintiff was required to undergo a background check.

18. Defendant Accurate Background, Inc. ("Accurate") was retained to perform this background check.

19. Plaintiff's employment was contingent upon successful completion of the background screening. His anticipated start date was May 21, 2025.

20. On or around May 14–15, 2025, Sharp's human resources representative informed Plaintiff that his start date would be delayed because the background report had not yet been completed.

21. On or around May 20, 2025, Sharp accessed the finalized background report prepared by Accurate. The report erroneously associated Plaintiff with criminal convictions from Maricopa County, Arizona, involving a person named Justin Ray Rangel—who shares Plaintiff's first and last name, but has a different middle name and date of birth.

22. Plaintiff had not been arrested or convicted of any crime, had no criminal

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record, and truthfully disclosed on pre-screening forms that he had no such history.

23. Despite the obvious discrepancy in middle names and lack of a match on full date of birth, Accurate included the Arizona criminal records in Plaintiff's report without reasonable procedures to ensure maximum possible accuracy as required by law.

24. Plaintiff was not provided a copy of the background check prior to its delivery to Sharp. He only learned of the erroneous reporting after Sharp contacted him directly about it, approximately two weeks after the report was finalized.

25. Plaintiff immediately disputed the report with Accurate on May 30, 2025. Accurate acknowledged the dispute and initiated a reinvestigation, but refused to provide Plaintiff a copy of the original report during the pendency of the dispute, denying him the ability to fully understand or respond to the allegations.

26. Due to Accurate's reporting error, Plaintiff's employment with Sharp was delayed by approximately four weeks. Plaintiff did not begin working until mid-to-late June 2025.

27. Plaintiff's hourly wage as a CT technologist at Sharp is approximately $70 per hour, inclusive of shift differentials. As a result of the delay, Plaintiff lost approximately 160 hours of work, or about $11,200 in gross wages.

28. Plaintiff also suffered emotional distress, including anxiety, embarrassment, and financial strain, as a result of the delay in employment and the stigmatizing nature of the false criminal record.

29. Accurate ultimately removed the inaccurate criminal records from the report, but not until after Plaintiff's start date was significantly postponed and after he took multiple steps to dispute and correct the record.

30. Accurate failed to employ and follow reasonable procedures to assure maximum possible accuracy in the preparation of Plaintiff's investigative consumer report, including failing to match on full name and full date of birth, and inappropriately associating criminal records of another individual with Plaintiff.

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31. At no point did Accurate notify Plaintiff that a report containing adverse information had been furnished to a third party before providing him an opportunity to review and dispute its contents, in violation of the law.

ACTUAL DAMAGES

32. As a direct and proximate result of Defendants' conduct, Plaintiff lost a valuable employment opportunity and suffered emotional distress, reputational harm, and financial damages. All such damages have been suffered in the past, are continuing to be suffered, and such damages will continue in the future.

FIRST CAUSE OF ACTION

Violation of the Investigative Consumer Reporting Agencies Act (ICRAA)

[Against All Defendants]

33. Plaintiff hereby re-alleges and incorporates by reference each and every allegation stated in the preceding paragraphs of the Complaint as though set forth fully herein.

34. Plaintiff is a "consumer" as defined by Cal. Civ. Code § 1786.2(c). Accurate is an "investigative consumer reporting agency" as defined by Cal. Civ. Code § 1786.2(d).

35. The Report constitutes an "investigative consumer report" under Cal. Civ. Code § 1786.2(f), as it was used for employment purposes and included information on Plaintiff's character, general reputation, and mode of living obtained through personal interviews or public records.

36. Defendants, and each of them, willfully and/or negligently violated the ICRAA by engaging in one or more of the following acts or omissions, without limitation:

a. Failing to obtain Plaintiff's clear and unambiguous written authorization prior to procuring or causing to be procured an investigative consumer report;

b. Failing to provide proper disclosures to Plaintiff, in a standalone and

conspicuous written document, regarding the procurement of an investigative consumer report;

c. Failing to provide Plaintiff with a copy of the investigative consumer report prior to taking adverse action, including but not limited to denial of employment, termination, suspension, demotion, or other negative employment-related decisions;

d. Taking adverse action against Plaintiff based on information in an investigative consumer report without providing sufficient notice, a reasonable opportunity to respond, or a meaningful explanation of the decision;

e. Providing, furnishing, or using inaccurate, outdated, or misleading information in the investigative consumer report, including but not limited to information that was legally prohibited, incomplete, or unverifiable at the time of use;

f. Failing to implement and maintain reasonable procedures to ensure the maximum possible accuracy of the investigative consumer report furnished concerning Plaintiff;

g. Failing to conduct a timely and adequate reinvestigation after Plaintiff disputed the completeness or accuracy of information contained in the investigative consumer report;

h. Failing to provide required notices to Plaintiff regarding Plaintiff's rights under the ICRAA;

i. Failing to certify or obtain necessary certifications related to the purpose and use of the investigative consumer report;

j. Engaging in any other act or omission that constitutes a violation of the ICRAA under California law.

37. Each of the above-listed acts and omissions independently constitutes a violation of the ICRAA. Plaintiff is informed and believes, and thereon alleges, that

Defendants' violations were knowing, intentional, and willful. In the alternative, Defendants acted negligently and with reckless disregard for Plaintiff's rights.

38. As a direct and proximate result of Defendants' violations of the ICRAA, Plaintiff has suffered harm, including but not limited to loss of employment opportunities, reputational damage, emotional distress, and other actual damages in an amount to be proven at trial.

39. Accurate violated Cal. Civ. Code § 1786.20(b) by failing to maintain reasonable procedures to ensure the maximum possible accuracy of the information contained in the Report. The Report included materially inaccurate, incomplete, and unverifiable employment information that should not have appeared in a report used to evaluate Plaintiff's suitability for employment.

40. Accurate also violated Cal. Civ. Code § 1786.24 by failing to conduct a reasonable reinvestigation after receiving Plaintiff's written dispute. Accurate's reinvestigation process resulted in no meaningful corrections.

41. As a direct and proximate result of Defendants' violations of the ICRAA, Plaintiff suffered actual damages including loss of employment opportunity, emotional distress, reputational harm, and financial hardship.

42. Defendants' violations were willful and/or reckless, entitling Plaintiff to statutory damages, actual damages, punitive damages, attorney's fees, and costs pursuant to the ICRAA. Alternatively, Plaintiff alleges that Defendants' conduct was negligent, entitling Plaintiff to recover under the ICRAA.

SECOND CAUSE OF ACTION

Violation of the Fair Credit Reporting Act (FCRA)

[Against All Defendants]

43. Plaintiff hereby alleges and incorporates by reference each and every allegation stated in the preceding paragraphs of the Complaint as though set forth fully herein.

44. Plaintiff is a "consumer" as defined by 15 U.S.C. § 1681a(c). Defendants

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are "consumer reporting agencies" and/or "persons" as defined by 15 U.S.C. §§ 1681a(f) and (b).

45. The background check report at issue constitutes a "consumer report" and/or "investigative consumer report" as defined by 15 U.S.C. §§ 1681a(d) and (e), as it was used for employment purposes and contained information bearing on Plaintiff's personal characteristics, character, reputation, or mode of living.

46. Defendants, and each of them, violated the FCRA by engaging in one or more of the following acts or omissions, without limitation:

a. Failing to obtain Plaintiff's proper written authorization before procuring or causing to be procured a consumer report for employment purposes;

b. Failing to provide Plaintiff with clear, conspicuous, and stand-alone written disclosures prior to the procurement of a consumer report;

c. Failing to provide Plaintiff with a copy of the consumer report and a summary of rights before taking adverse action based on that report;

d. Taking adverse action against Plaintiff without providing adequate pre-adverse and post-adverse action notice as required by law;

e. Furnishing or using inaccurate, incomplete, misleading, outdated, or unverifiable information in the consumer report;

f. Failing to follow reasonable procedures to assure maximum possible accuracy of the information contained in Plaintiff's consumer report;

g. Failing to maintain adequate internal controls, training, or oversight to ensure compliance with FCRA obligations;

h. Failing to properly verify the accuracy of information in Plaintiff's consumer report after receiving a dispute from Plaintiff;

i. Failing to conduct a timely, reasonable, or good-faith reinvestigation of disputed information;

j. Re-reporting previously disputed and uncorrected information

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without proper certification or reinvestigation;

k. Failing to block, suppress, or otherwise correct information identified as resulting from fraud or identity theft;

l. Using or furnishing a consumer report for an impermissible purpose, or without a legitimate business need as required by the FCRA;

m. Failing to properly certify the purpose for which the report was obtained or used;

n. Failing to make required disclosures to Plaintiff about the source and use of the report;

o. Engaging in any other act or omission that constitutes a violation of Plaintiff's rights under the FCRA.

47. As a direct and proximate result of the above violations, Plaintiff suffered actual damages, including but not limited to denial of employment, lost income, emotional distress, reputational harm, and other economic and non-economic losses.

48. Each of the above-listed acts and omissions constitutes a separate and independent violation of the FCRA. Defendants' violations were willful and/or reckless, entitling Plaintiff to actual damages, statutory damages, punitive damages, attorney's fees, and costs pursuant to 15 U.S.C. §§ 1681n and 1681o. Alternatively, Plaintiff alleges that Defendants' conduct was negligent, entitling Plaintiff to recover under the FCRA.

THIRD CAUSE OF ACTION

Violation of the Cal. Bus. & Prof. Code § 17200 *et seq*.

[Against All Defendants]

49. Plaintiff hereby alleges and incorporates by reference each and every allegation stated in the preceding paragraphs of the Complaint as though set forth fully herein.

50. Pursuant to Cal. Bus. & Prof. Code § 17200 *et seq*, Defendants were

obligated to refrain from engaging in unfair business practices, including the unfair business practice of producing inaccurate and incomplete consumer background report about Plaintiff in violation of applicable California and Federal laws.

51. It is the policy of this State to enforce consumer background reporting laws, and to protect those businesses who comply with the law from losing competitive advantage to other businesses who fail to comply.

52. Defendant has engaged in the unfair business practices of consistently and knowingly committing the violations against Plaintiff as alleged in this complaint.

53. Defendants' conduct described herein constitutes an unlawful and unfair business practice. On information and belief, Defendants systematically apply internal policies that prevent correction of inaccurate consumer report information in violation of the law.

54. Plaintiff is a "person" within the meaning of the Business & Professions Code § 17204, and thus possesses standing to bring this suit for injunctive relief and restitution. As alleged in this Complaint, Plaintiff has suffered injury in fact from the unfair business practices of Defendant as required by Business & Professions Code § 17204.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against all Defendants, and each of them, as follows:

1. For declaration that Defendants' practices violate the law;
2. For actual, compensatory, special, and general damages in an amount according to proof;
3. For statutory penalties and punitive damages for each separate statutory violation where allowed by statute;
4. For pre- and post- judgment interest;
5. For reasonable attorney's fees and costs;
6. For injunctive relief as applicable; and

7. For such other and further relief as the Court deems just and proper.

JURY TRIAL DEMANDED.

Respectfully submitted,

DATED: July 31, 2025

BY: */S/ Jared V. Walder*
Jared V. Walder, ESQ

R23 LAW APC
Jared V. Walder
jared@R23Law.com

Attorney for Plaintiff
Justin Rangel

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ELECTRONICALLY STORED INFORMATION REQUEST

This notice is to demand that you preserve all documents, tangible things and electronically stored information ("ESI") potentially relevant to any issues in the above-entitled matter. This specifically includes, but is not limited to, all information pertaining to the above matter, including specifically all recordings of any telephone communication between your company and Plaintiff.

As used in this request, "you" and "your" or "your client" refers to your organizations, and its predecessors, successors in interest, assignees, parents, subsidiaries, divisions or affiliates, and their respective officers, directors, employees, servants, agents, attorneys, and accountants.

Much of the information subject to disclosure or responsive to discovery is stored on your client's current and former computer systems and other media and devices (such as: personal digital assistants, voice-messaging systems, online repositories and cell phones).

Electronically stored information ("ESI") should be afforded the broadest possible definition and includes (for example and not as an exclusive list) potentially relevant information whether electronically, magnetically or optically stored.

This preservation obligation extends beyond ESI in yours or your client's care, possession or custody and includes ESI in the custody of others that is subject to your client's direction or control. You must notify any current or former agent, attorney, employee, custodian or contractor in possession of potentially relevant ESI to preserve such ESI to the full extent of your client's obligation to do so, and you must try to secure their compliance.

JS 44 (Rev. 03/24)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

JUSTIN RANGEL; an individual;

(b) County of Residence of First Listed Plaintiff San Diego
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys *(Firm Name, Address, and Telephone Number)*

R23 Law APC, 633 West Fifth St. 26th Floor, Los Angeles, CA 90071, 888-533-2948

DEFENDANTS

ACCURATE BACKGROUND, LLC; and DOES 1 to 50, inclusive:

County of Residence of First Listed Defendant
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

'25CV1983 AJB MMP

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☑ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*

(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☐ 1	☐ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☐ 4
Citizen of Another State	☐ 2	☐ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☐ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT	TORTS		FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	**PERSONAL INJURY** ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice **PERSONAL INJURY** ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability **PERSONAL PROPERTY** ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other **LABOR** ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act **IMMIGRATION** ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 **INTELLECTUAL PROPERTY RIGHTS** ☐ 820 Copyrights ☐ 830 Patent ☐ 835 Patent - Abbreviated New Drug Application ☐ 840 Trademark ☐ 880 Defend Trade Secrets Act of 2016 **SOCIAL SECURITY** ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) **FEDERAL TAX SUITS** ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 376 Qui Tam (31 USC 3729(a)) ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit (15 USC 1681 or 1692) ☐ 485 Telephone Consumer Protection Act ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/ Exchange ☑ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes

REAL PROPERTY	CIVIL RIGHTS	PRISONER PETITIONS
☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	☐ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/ Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	**Habeas Corpus:** ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty **Other:** ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement

V. ORIGIN *(Place an "X" in One Box Only)*

☑ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District *(specify)* ☐ 6 Multidistrict Litigation - Transfer ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
ICRAA; FCRA; CAL. BUS. & PROF. CODE § 17200

Brief description of cause:
Background check error action

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $ Proven at trial.

CHECK YES only if demanded in complaint:
JURY DEMAND: ☑ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions): JUDGE _____ DOCKET NUMBER _____

DATE July 25, 2025

SIGNATURE OF ATTORNEY OF RECORD /s/ Jared V. Walder

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

I.(a) Plaintiffs-Defendants. Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

(b) County of Residence. For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)

(c) Attorneys. Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".

II. Jurisdiction. The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below**; NOTE: federal question actions take precedence over diversity cases.**)

III. Residence (citizenship) of Principal Parties. This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

IV. Nature of Suit. Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: Nature of Suit Code Descriptions.

V. Origin. Place an "X" in one of the seven boxes.
Original Proceedings. (1) Cases which originate in the United States district courts.
Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket.
PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7. Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.

VI. Cause of Action. Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service.

VII. Requested in Complaint. Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

VIII. Related Cases. This section of the JS 44 is used to reference related cases, if any. If there are related cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.